

Award
FINRA Dispute Resolution Services

In the Matter of the Arbitration Between:

Claimant
Kevin Matthew Toler

Case Number: 25-01157

vs.

Respondent
Edward Jones

Hearing Site: St. Louis, Missouri

Awards are rendered by independent arbitrators who are chosen by the parties to issue final, binding decisions. FINRA makes available an arbitration forum—pursuant to rules approved by the SEC—but has no part in deciding the award.

Nature of the Dispute: Associated Person vs. Member

REPRESENTATION OF PARTIES

For Claimant Kevin Matthew Toler (“Claimant”): Peter Lindholm, Esq., HLBS Law, Broomfield, Colorado.

For Respondent Edward Jones (“Respondent”): Eric A. Michaels, Esq., Meagan A. Lamberti, Esq., and Tyler M. Cohen, Esq., Saretsky Hart Michaels + Gould PC, Birmingham, Michigan.

CASE INFORMATION

Statement of Claim filed on or about: June 6, 2025.

Claimant signed the Submission Agreement: June 6, 2025.

Statement of Answer filed on or about: July 25, 2025.

Respondent signed the Submission Agreement: July 28, 2025.

CASE SUMMARY

In the Statement of Claim, Claimant asserted a claim alleging that the Form U5 filed by Respondent, as part of registration records maintained by the Central Registration Depository, is defamatory in nature.

Unless specifically admitted in the Statement of Answer, Respondent denied the allegations made in the Statement of Claim.

RELIEF REQUESTED

In the Statement of Claim, Claimant requested expungement of the Form U5 and relevant

portions of the Form U4 filed by Respondent; an award of damages in the amount of \$1.00; and any other relief as the Arbitrator deems just and equitable.

In the Statement of Answer, Respondent requested that the Panel enter an Order denying Claimant's Statement of Claim.

OTHER ISSUES CONSIDERED AND DECIDED

The Arbitrator acknowledges having read the pleadings and other materials filed by the parties.

On October 31, 2025, Respondent filed a Motion to Dismiss pursuant to Rule 13206 of the Code of Arbitration Procedure ("Code"), to which no response was filed. On November 24, 2025, the Arbitrator heard oral arguments on the Motion to Dismiss. Herein, the Arbitrator grants the Motion to Dismiss on the following grounds:

The "occurrence" under Rule 13206(a) was on March 26, 2002. More than six years passed from that date before this action was filed. Therefore, the action is time barred and must be dismissed. Claimant's argument of continuous republishing on the CRD as constituting ongoing "occurrences" is inconsistent with case law and is unpersuasive.

Respondent's Motion to Dismiss pursuant to Rule 13206 of the Code is granted by the Arbitrator without prejudice to any right Claimant has to file in court; Claimant is not prohibited from pursuing their claims in court pursuant to Rule 13206(b) of the Code.

AWARD

After considering the pleadings, Respondent's Motion to Dismiss, and arguments presented at the pre-hearing conference on November 24, 2025, the Arbitrator has decided in full and final resolution of the issues submitted for determination as follows:

1. Claimant's claims are dismissed in their entirety pursuant to Rule 13206 of the Code.
2. Any and all claims for relief not specifically addressed herein are denied.

FEES

Pursuant to the Code, the following fees are assessed:

Filing Fees

FINRA Dispute Resolution Services assessed a filing fee* for each claim:

Initial Claim Filing Fee	= \$	50.00
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**The filing fee is made up of a non-refundable and a refundable portion.*

Member Fees

Member fees are assessed to each member firm that is a party in these proceedings or to the member firm(s) that employed the associated person(s) at the time of the event(s) giving rise to the dispute. Accordingly, as a party, Respondent is assessed the following:

Member Surcharge	= \$	165.00
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Hearing Session Fees and Assessments

The Arbitrator has assessed hearing session fees for each session conducted. A session is any meeting between the parties and the Arbitrator, including a pre-hearing conference with the Arbitrator, which lasts four (4) hours or less. Fees associated with these proceedings are:

Two (2) pre-hearing sessions @ \$50.00/session

Pre-Hearing Conferences: October 1, 2025	1 session	= \$	100.00
November 24, 2025	1 session		

Total Hearing Session Fees	= \$	100.00
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The Arbitrator has assessed \$50.00 of the hearing session fees to Claimant.

The Arbitrator has assessed \$50.00 of the hearing session fees to Respondent

All balances are payable to FINRA Dispute Resolution Services and are due upon receipt.

ARBITRATOR

Bruce Keplinger

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Sole Public Arbitrator

I, the undersigned Arbitrator, do hereby affirm that I am the individual described herein and who executed this instrument, which is my award.

Arbitrator's Signature

Bruce Keplinger

Bruce Keplinger
Sole Public Arbitrator

12/05/2025

Signature Date

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December 08, 2025

Date of Service (For FINRA Dispute Resolution Services use only)